



2025:UHC:6941

SL. No.	Date	Office Notes, reports, orders or proceedings or directions and Registrar's order with Signatures	COURT'S OR JUDGE'S ORDERS
			<u>WPMS/2301/2025</u> <u>Hon'ble Manoj Kumar Tiwari, J.</u> 1. Mr. Tapan Singh, Advocate for the petitioner. 2. In this petition, filed under Article 227 of the Constitution, petitioner has challenged order dated 24.04.2025 passed by Electricity Consumer Grievance Redressal Forum (Garhwal Zone), Dehradun. By the said order, complaint made by respondent was allowed and the demand of ₹5,72,792/- made by petitioner, based on difference in reading of check meter and main meter, was set aside. 3. Learned Electricity Consumer Grievance Redressal Forum relied upon proviso to Clause (5) of Regulation 5.1.3 of the Uttarakhand Electricity Regulatory Commission Regulations, 2020, notified on 29.10.2020 for allowing the complaint. Clause (5) of Regulation 5.1.3 reads as under:- “(5) The Licensee shall, within 30 days of receiving the complaint, carry out testing of the meter as per the procedure specified in these regulations and shall furnish duly authenticated test results to the consumer. The consumer shall be informed of proposed date and time of testing at least 2 days in advance. Provided that where the Licensee is installing a test/check meter alongwith the meter under test for verification of energy consumption, in such cases the Licensee shall be required to provide a copy of the valid test report of such test/check meter to the consumer before initiating the testing.” 4. Clause 4 of Regulation 5.1.3 enables a consumer, who disputes the accuracy of a meter, to give notice/complaint to that effect and by paying prescribed testing fee, have the meter tested by the licensee. Proviso to Clause (5) is



		attracted when the licensee suspects that a meter is recording less consumption of electricity than the actual consumption by the consumer. The proviso safeguard the interest of the consumer by providing that licensee shall be required to provide a copy of the valid test report of such test/check meter to the consumer before initiating the testing. 5. Clause 12 of Regulation 5.1.3 provides that if the consumer or his representative disputes or refuses to sign the test report, the defective meter shall not be replaced and the matter shall be decided either, (a) upon the application of consumer, by CGRF or Electrical Inspector or any authorised third party, who shall test the correctness of the meter and give results within one month; or (b) upon the application of Licensee, by Electrical Inspector or any authorised third party, who shall test the correctness of the meter and give results within one month. 6. Petitioner is licensee, as defined under Section 2(39) of the Electricity Act, 2003. Petitioner installed a check meter in the premises of respondent, without following the procedure, as laid down in proviso to Clause (5) of Regulation 5.1.3. Based on reading of the check meter, demand of ₹5,72,792/- was raised by the petitioner, which was challenged by respondent before Electricity Consumer Grievance Redressal Forum. The complaint filed by respondent was allowed and the demand raised by petitioner was set aside on the ground that the prescribed procedure was not followed while installing check meter. 7. Learned counsel for the petitioner submits that during inspection, it was found on 03.12.2024 by the Executive Engineer, Testing Division (Rural), Dehradun that there was some fault in the meter installed in the premises of
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		respondent; voltage in R-phase was zero, but it was okay on tong tester; since there was no one available at the site, therefore, the employees of petitioner prepared checking report and affixed the copy of the sealing certificate on the gate of the premises of respondent. It is further stated that employees of petitioner prepared sealing certificate on 24.12.2024, which too was affixed on the gate of the premises of respondent and thereafter on 30.12.2024, employees of the petitioner again went to the site but no one was found, therefore, check meter was installed and MRI of both meters was done and cubical box was sealed and copy of the sealing certificate, current energy and demand, instant data report, certificate of accreditation and test certificate of check meter was affixed on the gate of respondent. 8. Learned Forum found fault with the procedure adopted by the petitioner. For holding so, learned Forum relied upon proviso to Clause (5) of Regulation 5.1.3, which requires the licensee to provide copy of the valid test report of check meter to the consumer before initiating testing. 9. This Court concurs with the view taken by learned Forum. Respondent was neither supplied test report nor he was given any notice about the installation of check meter, which is mandatory, therefore, the order passed by learned Forum cannot be faulted. When the Statute requires the thing to be done in a particular manner then that thing must be done in that manner or not at all. The view taken by learned Forum also finds support by Clause 12 of the Regulation 5.1.3. 10. Learned counsel for the petitioner relied upon Clause (4) of Regulation 5.1.3 for challenging the impugned order, which is extracted below:
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			“(4) If the consumer disputes the accuracy of the meter, he may, upon giving notice/complaint to that effect and paying prescribed testing fee as per charges given in the prevailing Tariff Order, have the meter tested by the Licensee. If, after testing, the meter is found to be defective or recording incorrectly or damaged due to technical reasons, attributable to the Licensee then the fee deposited for meter testing will be refunded by adjustment in the electricity bills. In case, the meter is found to be correct then the Licensee will not refund such fee.” 11. The Clause, relied upon by learned counsel for the petitioner deals with a situation when the consumer has requested for testing the meter, which is not the case here. In the present case, the licensee of its own installed the check meter, therefore, proviso to Clause (5) of Regulation 5.1.3 is attracted. 12. Learned counsel for the petitioner could not show any Statutory provision, which enables the Electric Distribution Licensee to install a check meter without supplying copy of the valid test report of the check meter to the consumer before initiating testing. 13. Thus, there is no scope for interference in the matter. The writ petition fails and is dismissed. (Manoj Kumar Tiwari, J.) 07.08.2025 Aswal NITI RAJ SINGH ASWAL
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